BOOKS

DECIPHERING QUOTAS

By Rohit De

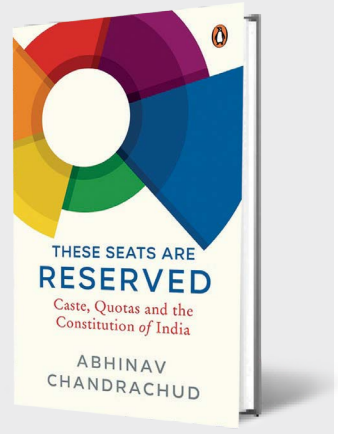
These Seats are Reserved by Abhinav Chandrachud, a lawyer practising at the Bombay High Court, explains the history of the affirmative action provisions in the Indian Constitution and demystifies the complex set of rules and procedures through which these clauses are put into operation. Self-consciously addressing the upper caste reader, it takes on oft-repeated assumptions like the idea that the various reservations are anti-merit, or are a product of vote bank politics. The first half traces the history of constitutionalising reservation history, beginning with the activism of Jyotiba Phule and moving through to the enactment of the 103rd amendment of the Constitution which gives 10 per cent reservation to the "economically weaker sections" of upper castes. The latter half offers valuable clarity to the "bewildering complexity" of law governing reservation by analysing constitutional amendments and judicial pronouncements. The Indian project of equality through affirmative action is an "original contribution" to constitutional law globally, particularly in its clear aim to redress centuries of oppression and to transform society. Written in accessible prose, *These Seats are Reserved* makes the history and current debates over reservation legible to the layman.

The book is written in the style of educating rather than advocating; indeed, its conclusion is a summary of arguments for and against reservation. However, Chandrachud offers some powerful answers that will shape public discourse and advocacy. First, that despite using the term "backward classes", the founders of the Constitution, including Ambedkar, intended for it to be synonymous with caste or tribe. The 103rd Amendment thus is a major departure from the original vision of the Constitution. Second, that reservation in jobs was intended to ensure "adequate representation" rather than proportional representation, and the absence of reliable caste census data makes it difficult to implement either proposition. Third, limiting reservation only to Scheduled Caste Hindus, Sikhs (from 1956) and Buddhists (from 1990) is arbitrary and doesn't follow from the state's own practice of understanding social and educational backwardness.

The last chapter, though brief, shows the range of dilemmas in administering reservation in practice. Is caste lost upon conversion or marriage, and regained by re-conversion and divorce? Does your caste status and history migrate across the country? Why are OBCs categorised in a gradation of backwardness while Scheduled Castes and Tribes are treated as monoliths? Or why is reservation for women, disabled, armed forces or sportspersons not subject to the "creamy layer" rule or the 50 per cent cap on reservation? As Chandrachud notes, the answers to these are often unfair and problematic.

In a footnote, he adds a disclaimer that this is not a book about the politics of caste. Indeed, in style, it conforms to the Aristotelian idea that "law is reason free from passion". In the first half, the politics and passions inform the prose, with the narrative shaped by anti-caste activists like Jyotiba Phule, the Justice Party, Shahuji Maharaj and Dr Ambedkar. We are also confronted by the prejudices of Sardar Patel, Tilak, K.M. Munshi and Nehru. The latter half focuses almost entirely on judicial reasoning. Absent are the powerful mobilisations by Dalits, tribals and OBCs to ensure reservation as well as resistance from upper castes. Or insidious forms of everyday violence and discrimination that result in the epidemic of suicides among Dalit-Bahujan students.

Chandrachud points out that reservation in jobs and educational institutions affect a tiny minority, given that college graduates make up under 10 per cent of India's population (under 5 per cent of SC and ST) and less than 5 per cent of working age Indians are employed by the state. Why then are passions around reservation so heightened? Focusing on reservation elides the fact that its proponents demanded that it be implemented along with other reforms such as land redistribution. Why have successive governments failed to address this? Reading this book is an invitation to think more deeply about the political economy that lies behind the claims made for and against reservation, and what other measures are needed to meet our constitutional promise. ■



THESE SEATS ARE RESERVED
Caste, Quotas and the Constitution of India
by Abhinav Chandrachud
PENGUIN VIKING
₹599; 272 pages

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